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Case Number: 24NWCV00192 Hearing Date: August 13, 2026 Dept: L

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TENTATIVE ORDER

Plaintiff Gregory Gorman's Motion to Compel Deposition of First Transit's Person Most Knowledgeable and Request for Production of Documents is GRANTED.

Plaintiff to give notice.

Background

This is a negligence action. On January 18, 2024, Plaintiff Gregory Gorman ("Plaintiff") filed this action against Defendants First Transit, Inc. ("First Transit"), Jane Doe 1, and Does 1 to 10.

On April 28, 2025, Plaintiff filed the First Amended Complaint (FAC), naming Loreen Joseph as Jane Doe 1 and naming Transdev Group, S.A., Transdev North America, Inc., and Transdev Services, Inc. as Does 2, 3, and 4.

On January 20, 2026, Plaintiff filed the Second Amended Complaint.

On May 28, 2026, Plaintiff filed the Third Amended Complaint (TAC). The TAC alleges that Plaintiff boarded a bus owned and operated by Defendant First Transit. The bus driver, Loreen Joseph, allegedly accelerated the bus before Plaintiff could sit down, causing Plaintiff to fall to the floor. The TAC alleges the following causes of action: 1) Negligence, 2) Negligence Training and Supervision, and 3) Common Carrier Liability.

In November 2025, Plaintiff served its Notice of Deposition of Defendant First Transit's Person Most Knowledgeable ("PMK") and Request for Production of Documents, setting the deposition for January 27, 2026. (Wiggins Decl., ¶ 27, Exh. 19; Smith Decl., ¶ 1, Exh. A.) On January 13, 2026, Defendants First Transit, Inc., Loreen Joseph, Transdev Services, Inc., and Transdev North America, Inc. served their objections. (Smith Decl., ¶ 2, Exh. B.) To date, First Transit has failed to produce its PMK for deposition. (Ibid.)

Plaintiff now moves to compel the deposition of First Transit's PMK with request for production of documents. Defendants First Transit, Inc., Loreen Joseph, Transdev Services, Inc., and Transdev North America, Inc. (hereinafter, "Defendants")

oppose.

Evidentiary Objections

Plaintiff's evidentiary objections are overruled to the Declaration of Paul Smith in support of the Opposition are overruled as to Nos. 1-3.

Defendant's evidentiary objections to the Supplemental Declaration of Herbert N. Wiggins in support of the Reply to the extent it offers new evidence not offered in the original Motion.

Legal Standard

Under Code of Civil Procedure section 2025.450, subdivision (a), a party may move to compel a deponent's attendance and production for inspection of documents if after serving the deposition notice the responding party fails to serve valid objections and fails to appear for the deposition or produce any document described in the deposition notice. A motion under Code of Civil Procedure section 2025.450, subdivision (a) must (1) provide specific facts showing good cause justifying the production for inspection of any document and (2) be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2025.450, subd. (b).)

Meet and Confer

"[W]hen the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, [the

motion shall be accompanied] by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc. § 2025.450 subd. (b)(2).)

On January 13, 2026, Defendants served a meet and confer letter regarding their objections to Plaintiff's Notice of Deposition. (Smith Decl., ¶ 3, Exh. C.) On March 3, 2026, Plaintiff's counsel attempted to meet and confer with Defense counsel, in which Plaintiff offered to pare down the categories or examination and requests for documents. (Wiggins Decl., ¶ 28.) Between March 10, 2026 and March 18, 2026, the parties met and conferred further—however, it became apparent that Defendant First Transit would not produce their PMK for deposition. (Ibid.) On May 8, 2026, Plaintiff filed this Motion.

The Court finds that the meet and confer requirement has been met.

Discussion

Plaintiff argues that there is good cause to compel the deposition of Defendant First Transit's PMK, as such testimony and documents is relevant to the issue of punitive damages. Specifically, the deposition may shed light on the following issues: "1) Knowledge of the previous, substantially similar accidents involving passengers thrown to the floor; 2) Knowledge of the assessments in the hundreds of thousands and millions of dollars by OCTA against First Transit; and 3) Knowledge of poor training and supervision." (Mot., 11:1-6.) Such information would tend to show that Defendants had knowledge of a dangerous condition/practice and failure to address such condition, which would support an award of punitive damages. Plaintiff has obtained information from other depositions of OCTA employees (First Transit's employer) suggesting that Defendants had corporate knowledge of the repeated pattern of elderly, disabled passengers being thrown to the floor.

In opposition, Defendants assert that the scope of the Notice of Deposition is inappropriate for the issues in this case. Defendants concede liability for the incident by "by acknowledging that Ms. Joseph was acting within the course and scope of her employment as a bus operator" when she caused Plaintiff's fall. (Opp., 2:10-13.) Defendants assert that the only remaining issues in this case are whether Plaintiff suffered injury, the nature and extent of those injuries, and damages. The Notice of Deposition seeks information outside of the scope of the remaining issues in this case—specifically, it seeks "the maintenance history, service history, and operation manuals of the bus model despite no claims of equipment malfunction; incidents involving other passengers with no connection to Ms. Joseph, Plaintiff, or his claims; and evaluations, performance measurement reports, assessments and fines by the Orange County Transit Authority." (Opp., 4:6-10.) Such categories and requests for production are not limited to a specific time period or jurisdiction. Defendants thus object to the Notice of Deposition's categories for examination and requests for production of documents on grounds that they are not reasonably particularized and are overly broad in scope and time.

Defendants notes that the Court has previously struck punitive damages from the FAC and the SAC. Defendants have filed a motion to strike punitive damages from the TAC, which is currently set for hearing on December 3, 2026.

In reply, Plaintiff reasserts that the information sought is discoverable. Plaintiff asserts that the TAC contains new allegations regarding Defendants' corporate knowledge to support a punitive damages claim and that Plaintiff should be able to conduct discovery to explore the theory. Plaintiff notes that the Court has not ruled on the viability of these new punitive damages allegations in the TAC.

The Court notes that, under Code of Civil Procedure section 2025.230, Plaintiff need only provide matters for examination to guide Defendant First Transit in selecting a PMK for deposition. (See Code Civ. Proc., § 2025.230 "[I]f the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent."].)

Here, the Court finds that the categories of examination are reasonably particularized such that Defendants can determine a PMK. The categories are further limited to the time period of 2014 to present and generally seek information regarding OCTA buses. To the extent the categories involve other jurisdictions (i.e., the entirety of California, all jurisdictions), the Court finds such categories are not reasonably particularized. Defendants need only determine a PMK who can testify as to OCTA buses.

The Court further notes that the request for documents in conjunction with a deposition notice is not the equivalent of a request for production of documents under Code of Civil Procedure section 2031.010 et seq. A request for production of documents in a deposition notice need only specify with reasonable particularity the materials or category of materials to be produced by the deponent. (Code Civ. Proc., § 2025.220, subd. (a)(4).) A motion to compel production of documents related to a deposition only requires a showing of "good cause justifying production." (Code Civ. Proc., § 2025.450, subd. (b)(1).) "Objections to the competency of the deponent, or to the relevancy, materiality, or admissibility at trial of the testimony or of the materials produced are unnecessary and are not waived by failure to make them before or during the deposition." (Code Civ. Proc., § 2025.460 subd., (c).)

Here, the Court finds that the requests for production are reasonably particularized. The requests for production seek communications between the parties, safety protocols and training materials for bus operation, information regarding the subject bus, writings relating to the incident, writings from OCTA regarding incidents of passengers falling, etc. The Court finds good cause justifying the production—the requests would tend to prove Defendants' corporate knowledge and ratification of a recurring dangerous practice, which could support a punitive damages award. The Court agrees with Plaintiff that his punitive damages theory is still viable at this point and that he is entitled to discover information that may lead to further supporting allegations. Further, the requests for production are limited to the time period of 2014 to present and seek information involving the subject bus or OCTA buses. The Court finds that such information is reasonably calculated to lead to admissible evidence.

Accordingly, Plaintiff's Motion to Compel Deposition of First Transit's Person Most Knowledgeable and Request for Production of Documents is granted, as modified. Defendant First Transit's PMK is ordered to appear for a deposition and produce the requested documents. The parties shall meet and confer to determine the date, time, and location of the deposition. The deposition shall take place no later than 30 days from the date of the Court's issuance of this order. The date may be extended by agreement of the parties.